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|     |                                                                  | <p>receives statutory notice and fails to assert its rights, but the existence of such notice is not established here.</p> <p>Accordingly, although Defendant may raise its settlement, notice, waiver, indemnity, double-recovery, and <i>Glover</i> defenses on a developed factual record, those defenses do not defeat Plaintiff's statutory subrogation claim as a matter of law on demurrer.</p> <p>The demurrer is therefore overruled.</p> <p>Plaintiff shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 10. | 2023-1355916<br>Jahanbin vs. 1-<br>C.S.I. Patrol<br>Service Inc. | <p>The unopposed general and special demurrer by Defendants C.S.I. Patrol Service, Inc. and January Rushan (collectively, "Defendants") to the Fourth Amended Complaint ("4thAC") filed by Plaintiff Khosrow Jahanbin ("Plaintiff") and each of the four causes of action alleged therein is sustained. Defendants' unopposed motion to strike is moot.</p> <p><u>DEMURRER TO FOURTH AMENDED COMPLAINT</u></p> <p>Defendants' request for the Court to take judicial notice of Plaintiff's 4thAC is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may "simply call the court's attention to such papers." (Weil &amp; Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 9:53.1a.)</p> <p>CRC Rule 2.112 provides:</p> <p style="padding-left: 40px;">Each separately stated cause of action, count, or defense must specifically state:</p> <p style="padding-left: 40px;">(1) Its number (e.g., "first cause of action");</p> <p style="padding-left: 40px;">(2) Its nature (e.g., "for fraud");</p> <p style="padding-left: 40px;">(3) The party asserting it if more than one party is represented on the pleading (e.g., "by plaintiff Jones"); and</p> <p style="padding-left: 40px;">(4) The party or parties to whom it is directed (e.g., "against defendant Smith").</p> <p>Failure to comply with CRC 2.112 presumably renders a complaint subject to <i>motion to strike</i> or a <i>special demurrer for uncertainty</i>. (<i>Grappo v. McMills</i> (2017) 11 Cal.App.5th 996, 1014; Weil &amp; Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 6:113.) Like Plaintiff's First Amended Complaint, Second Amended Complaint, and first, second, and fifth through seventh causes of action in Plaintiff's Third Amended Complaint, Plaintiff's 4thAC does not comply with Rule 2.112. Although Plaintiff identifies four causes of action on the first page of the 4thAC, Plaintiff did not allege against which defendant(s) each cause of</p> |

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|  | <p>action is alleged. Nor does Plaintiff identify which facts support each cause of action. Accordingly, the special demurrer for uncertainty to the 4thAC and the four causes of action alleged therein are sustained.</p> <p>Defendant also demurs generally to the 4thAC and each of the four causes of action alleged therein.</p> <p>The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 668-669.)</p> <p>Plaintiff did not allege sufficient facts to state this cause of action.</p> <p>"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 669 [citing CACI 1300].)</p> <p>Plaintiff did not allege sufficient facts to state a cause of action for battery.</p> <p>Plaintiff appears to bring a cause of action for civil harassment.</p> <p>CCP section 527.6, subdivision (b)(3) defines harassment to be "unlawful violence, a credible threat of violence, or a knowing and willful course of conduct directed at a specific person that seriously alarms, annoys, or harasses the person, and that serves no legitimate purpose. The course of conduct must be that which would cause a reasonable person to suffer substantial emotional distress, and must actually cause substantial emotional distress to the petitioner." (Code Civ. Proc., § 527.6, subd. (b)(3); <i>see Thomas v. Quintero</i> (2005) 126 Cal.App.4th 635, 648.)</p> <p>Plaintiff did not allege sufficient facts to state this cause of action.</p> <p>There are two types of emotional distress claims – intentional infliction of emotional distress and negligent infliction of emotional</p> |
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distress. Plaintiff did not identify which of the two types of emotional distress he is alleging in the 4thAC.

The elements to plead a cause of action for intentional infliction of emotional distress are: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.)

"Behavior may be considered outrageous if a defendant (1) abuses a relation or position that gives him power to damage the plaintiff's interests; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress... ." (*Molko v. Holy Spirit Ass'n* (1988) 46 Cal. 3d 1092, 1122 [superseded by statute on other grounds].)

"The law intervenes only where the distress inflicted is so severe that no reasonable man could be expected to endure it. The intensity and duration of the distress are factors to be considered in determining the severity." (*Fletcher v. Western Life Insurance Co.* (1970) 10 Cal.App.3d 376, 397.) "Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.)

"Discomfort, worry, anxiety, upset stomach, concern, and agitation" as the result of defendant's conduct do not constitute emotional distress of "such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 105.) "[O]rdinary defendants are not liable for mere insult, indignity, annoyance, or even threats, where the case is lacking in other circumstances of aggravation. The reasons are not far to seek. Our manners, and with them our law, have not yet progressed to the point where we are able to afford a remedy in the form of tort damages for all intended mental disturbance. Liabilities of course cannot be extended to every trivial indignity.... Accordingly, it is generally held that there can be no recovery for mere profanity, obscenity, or abuse, without circumstances of aggravation, or for insults, indignities or threats which are considered to amount to nothing more than mere annoyances. The plaintiff cannot recover merely because of hurt feelings." (*Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1128.)

In addition, it is “not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

The cause of action for negligent infliction of emotional distress is not an independent tort. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868.) “The tort of negligent infliction of emotional distress is a variation of the tort of negligence. The traditional elements of duty, breach of duty, causation and damages apply.” (*Slaughter vs. Legal Process & Courier Serv.* (1984) 162 Cal.App.3d 1236, 1249.)

Plaintiff did not allege sufficient facts to state either intentional infliction of emotional distress or negligent infliction of emotional distress.

Accordingly, Defendants’ general demurrer to Plaintiff’s 4thAC and each cause of action therein is sustained.

The Court notes the Court ordered the parties to meet and confer before Plaintiff filed a fourth amended complaint pursuant to CCP section 430.41, subdivision (c), in sustaining Defendants’ demurrer to Plaintiff’s Third Amended Complaint. (3/11/2026 Minute Order.) There is no showing whether the parties met and conferred before Plaintiff filed the 4thAC.

This is Plaintiff’s Fourth Amended Complaint. The Court previously sustained Defendants’ special demurrer on the same ground (failure to comply with CRC Rule 2.112) on three occasions with leave to amend.

CCP section 430.31, subdivision (e)(1) provides: “In response to a demurrer and prior to the case being at issue, a complaint or cross-complaint shall not be amended more than three times, absent an offer to the trial court as to such additional facts to be pleaded that there is a reasonable possibility the defect can be cured to state a cause of action. The three-amendment limit shall not include an amendment made without leave of the court pursuant to Section 472, provided the amendment is made before a demurrer to the original complaint or cross-complaint is filed.”

Plaintiff did not oppose the demurrer and did not show how the 4thAC may be properly amended to comply with CRC Rule 2.112 and how additional facts may be alleged to state each of the four causes of action. Leave to amend is denied. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145; *Mohler v. County of Santa Clara* (2023) 92 Cal.App.5th 418, 428.)

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|     |                                                            | <p><u><b>MOTION TO STRIKE FOURTH AMENDED COMPLAINT</b></u></p> <p>Defendants’ motion to strike is therefore moot.</p> <p>Defendants shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 11. | 2026-1578614<br>State Bar of<br>California vs.<br>Minnella | <p><b>***MODIFIED TENTATIVE AFTER SUBMISSION OF RESPONDENT DECLARATIONS</b></p> <p>The matter was initially set on 8/26/26. At the hearing, the Court inquired of Respondent’s counsel why no declarations had been submitted with the opposition. Respondent’s counsel asked for additional time to file declarations. The Court granted the request and continued the matter one week, to 9/2/26. The Court has received, read, and considered the newly submitted declarations (ROAs 70, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, and 82).</p> <p>At the outset, the Court notes that it received via United States mail, addressed to the Court by name, an unsolicited ex parte communication essentially attesting to Respondent John Minnella’s good character. The Court directed the clerk not to file the unauthorized communication, and the Court did not consider it in ruling on the petition.</p> <p>The State Bar of California’s Petition for Assumption of Jurisdiction over the unauthorized law practice of Respondent John Minnella is granted.</p> <p>Business and Professions Code section 6125 prohibits a person from practicing law in California unless the person is an active licensee of the State Bar. Giving legal advice and preparing legal instruments, whether or not rendered in the course of litigation, constitutes the practice of law. (<i>State Bar of California v. Superior Court</i> (1929) 207 Cal. 323, 335.) A single such act is sufficient. (<i>People v. Ring</i> (1937) 26 Cal.App.2d Supp. 768, 770–771.)</p> <p>Business and Professions Code section 6126, subdivision (a), provides in relevant part: “Any person advertising or holding himself or herself out as practicing or entitled to practice law or otherwise practicing law who is not an active licensee of the State Bar, or otherwise authorized pursuant to statute or court rule to practice law in this state at the time of doing so, is guilty of a misdemeanor....”</p> <p>An application under Business and Professions Code section 6126.3 must initially demonstrate probable cause to believe that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be</p> |